



AMERICAN FORK CITY COUNCIL
AUGUST 27, 2024
REGULAR SESSION MINUTES

Members Present:

Bradley J. Frost	Mayor
Staci Carroll	Council Member
Ryan Hunter	Council Member
Ernie John	Council Member
Clark Taylor	Council Member

Members Absent:

Tim Holley	Council Member
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Staff Present:

David Bunker	City Administrator
Terilyn Lurker	City Recorder
Derric Rykert	Community Services Director
Patrick O'Brien	Development Services Director
Anna Montoya	Finance Officer
Aaron Brems	Fire Chief
Justin Whatcott	Fire Battalion Chief
George Schade	IT Director
Cherylyn Egner	Legal Counsel
Cameron Paul	Police Chief
Sam Kelly	Public Works Director
Bronte Stevens	Communications Specialist

Also present: Ann Maas, Ryan Davis, Andrew Patterson, Nick Merrill, Robert Tillotsen, Scott Knight, Alexandra Giunta, Kevin Mithy, Kline Bradford, Alan Wessman, and five additional people.

The American Fork City Council held a public hearing in conjunction with the regular session on Tuesday, August 27, 2024, in the American Fork City Hall, 31 North Church Street, commencing at 7:00 p.m.

- Receiving public comment on the THN 2 Annexation located at approximately 1054 East 300 North and consisting of 1.308 acres.
Ann Maas. Ms. Mass stated the property owners in the neighborhood have concerns on this annexation they would like addressed regarding safety and privacy. She noted the increased traffic on 300 North would impact the safety of the kids. They do understand that businesses are in the surrounding area, but the homes were there first. The neighbors want to know how the safety and traffic would be addressed with the increased traffic. They want to know how privacy would be maintained, as a two-story building would look directly into backyards and would interfere with privacy. They did not think it was fair to residents as they do not know what is going to happen with the property.

REGULAR SESSION

1. Pledge of Allegiance; Invocation by Council Member Carroll; roll call.
Those present recited the Pledge of Allegiance and an invocation was offered by Council Member Carroll. Roll call was taken. Council Member Holley was excused as he was out of the country.
2. Presentation of the HERO Award to Michelle Anderson
Mayor Frost invited Michelle Anderson forward. On July 18, 2024, Ms. Anderson's quick thinking and training saved a life where every second counted. While at a pool with her daughter, she was alerted to a child who had fallen into the pool and drowned. Ms. Anderson, who is a registered nurse at Intermountain Medical Center, pulled her out and performed CPR until the child began breathing again. Without her actions, the outcome would have been very different. In recognition of her heroism, they are proud to present the HERO award to Michelle Anderson and declare August 27, 2024, as Michelle Anderson day in American Fork City.

Battalion Chief Justin Whatcott stated Ms. Anderson did make a difference with her quick thinking and they are grateful for her actions in saving the child.

3. Twenty-minute public comment period - limited to two minutes per person.
Nick Merrill. Mr. Merrill expressed two concerns he has regarding bike lanes on 200 South. After the construction on the intersection on 200 South, a nice shoulder was included on the way to the FrontRunner Station. It gave people a lot of space to ride their bikes, however, for several weeks there have been cars parked there. With the cars in that shoulder area, those on bikes now have to go into the lane of travel, which is a safety concern. He asked that the city not allow parking there. Additionally, on 200 South where bike lanes had been marked, after it was repaved the bike lanes were no repainted. He asked the city to implement the bicycle master plan as approved.

**Council Member Hunter arrived.*

4. City Administrator's Report
Mr. Bunker had nothing to report.
5. Council Reports
Council Member Taylor had nothing to report but loved starting the meeting with the HERO award. He expressed his appreciation for Ms. Anderson and what she did to save that child, and for others in the community who are also heroes.

Council Member Carroll was also moved by the heroic efforts of Ms. Anderson. Council Member Carroll reported that the Library Director, Casandria Crane, has been working on updating the catalog system which would benefit everyone. She found a system that would save the city money each month, however, the upfront cost was quite large. Ms. Crane was able to obtain a \$61,000 grant to cover that cost. Council Member Carroll noted the library was also working on their strategic plan.

Council Member John reported he attended the 911 Board meeting this last month. He expressed his appreciation for the director, who was vocal with her thoughts that people's lives come first and was willing to stand up for that. He stated we have a wonderful 911 Dispatch Center.

Council Member Hunter had nothing to report.

6. Mayor's Report
Mayor Frost stated he attended a meeting yesterday where several people toured Polaris High School, which is a unique high school in American Fork that has a day care and food pantry, as well as resources for students who need additional help. He was grateful we belong to a

community that cares for everyone, and he expressed his gratitude that the district and city can work together to provide the needed resources.

COMMON CONSENT AGENDA

(*Common Consent* is that class of Council action that requires no further discussion or which is routine in nature. All items on the Common Consent Agenda are adopted by a single motion unless removed from the Common Consent Agenda.)

1. Approval of the July 23, 2024, work session minutes.
2. Approval of the July 23, 2024, city council minutes.
3. Approval of the August 6, 2024, special session minutes.
4. Approval of a full-service restaurant liquor license for Delipan Latin Flair located at 224 East Main Street.
5. Approval of the authorization to sign a Notice of Approval of Local Government for the Meadowbrook TOD Phase 2 project.
6. Ratification of city payments (July 31, 2024, to August 20, 2024) and approval of purchase requests over \$50,000.

Council Member Taylor moved to approve the common consent agenda. Council Member John seconded the motion. Voting was as follows:

RESULT:	APPROVED [UNANIMOUS]
MOVER:	Clark Taylor, Council Member
SECONDER:	Ernie John, Council Member
YES:	Staci Carroll, Ryan Hunter, Ernie John, Clark Taylor
ABSENT:	Tim Holley

ACTION ITEMS

1. Review and action on an ordinance approving the THN 2 Annexation, located at approximately 1054 East 300 North consisting of 1.308 acres, including the ordinance of annexation, annexation agreement, road dedication plats, and placement of the property in the PO-1 and R1-9,000 zones.

Patrick O'Brien explained that historically, the land use included in this annexation was for residential use. A couple of years ago, that was changed to allow for the PO-1 zone if annexed into the city. Several months ago, the city council approved changes to the city code pertaining to setbacks, which allowed for a buffer between the structure and the adjacent residential property. That setback relates to the maximum height of the building, which is 30 feet. For example, a 30-foot-tall building would have to be 30 feet away from the residential property. It can be greater than that, depending on how the project is laid out. In contrast, the R1-9,000 has a maximum permitted height of 36 feet, which is six feet higher than the PO-1 zone. Mr. O'Brien explained the current setback requirements for the residential zone.

Council Member Taylor brought up the traffic on 300 North. He noted that when development comes in, that would be the time they address the access and traffic concerns. Mr. O'Brien stated that part of the approval process would include the applicant providing a traffic study.

Council Member Taylor asked about the lighting. Mr. O'Brien stated lighting was not addressed in the city's code, but it was a common courtesy to keep lighting on their own property. Ms. Egner stated that while there is nothing that addresses that, if there were excessive lights, it would fall under the nuisance ordinance, and they could address it at that time.

Council Member John asked if the city was looking at addressing lights. Ms. Egner stated they had looked at that, but the issue was everyone has a different idea of what it should be, and it was

not easy to put into writing what it was. Mr. O'Brien stated across the street, there was a sign that was bright, and the city addressed that with the business owner and the brightness was turned down. There were ways to control the brightness of the lights.

Council Member Carroll stated that she was sympathetic to the comments of the resident, but they did amend the city code change specifically to address this.

Council Member Carroll moved to adopt Ordinance No. 2024-08-41 approving the THN 2 Annexation located at approximately 1054 East 300 North, including the ordinance of annexation, road dedication plat, annexation agreement, and placement of the property in the PO-1 zone and R1-9,000 zones. Council Member Hunter seconded the motion.

Council Member Taylor wanted the residents to be assured their concerns would be addressed.

Ms. Maas stated the use was still vague, and the use could greatly impact the neighborhood. Depending on the use, noise and traffic could also be an issue. It was hard for the neighbors to feel confident that their concerns would be addressed.

A resident stated that the purpose of a business was to make money, and when it came to lighting interfering with the residential areas, he didn't have trust that the neighborly thing would be to limit the lighting. Council Member Taylor stated that is where they would have to rely on staff and the city council to make sure those concerns are addressed.

Council Member Taylor stated that they understood the noise issue that came with the hospital. With what comes into that property, they do have a little more control. The resident commented that it was vague, and felt they were kicking things down the road and that when they got to the point of development it was too late. They would like specific language to address their concerns.

Mayor Frost called for a vote on the motion. Voting was as follows:

RESULT:	ADOPTED [UNANIMOUS]
MOVER:	Staci Carroll, Council Member
SECONDER:	Ryan Hunter, Council Member
YES:	Staci Carroll, Ryan Hunter, Ernie John, Clark Taylor
ABSENT:	Tim Holley

2. Review and action on a Temporary/Seasonal Use Business License, known as Strangling Brother's Haunted Circus, located at 632 E 1500 S in the Planned Industrial (PI-1) Zone.
It was noted this business has operated at that location in previous years.

Council Member Carroll moved to approve the Strangling Brother's Haunted Circus as a temporary and seasonal use, at the location of 632 E 1500 S in the PI-1 Zone, subject to all requirements set forth in the American Fork City Municipal Code, including fire inspection and business license requirements. Council Member Taylor seconded the motion. Voting was as follows:

RESULT:	APPROVED [UNANIMOUS]
MOVER:	Staci Carroll, Council Member
SECONDER:	Clark Taylor, Council Member
YES:	Staci Carroll, Ryan Hunter, Ernie John, Clark Taylor
ABSENT:	Tim Holley

3. Review and action on approval of a Water Banking Agreement for Water Shares with Layne Downs for 12.50 acre-feet of water.

Council Member Hunter moved to approve the Water Banking Agreement for Water Shares with Layne Downs for 12.50 acre-feet of water. Council Member John seconded the motion. Voting was as follows:

RESULT:	APPROVED [UNANIMOUS]
MOVER:	Ryan Hunter, Council Member
SECONDER:	Ernie John, Council Member
YES:	Staci Carroll, Ryan Hunter, Ernie John, Clark Taylor
ABSENT:	Tim Holley

4. Review and action on approval of a Water Banking Agreement for water rights with Patterson Development, LLC. for 25.002 acre-feet of water.
Council Member Taylor moved to approve the water banking agreement for water rights with Patterson Development LLC and authorize the City to sign the necessary documents. Council Member John seconded the motion.

Council Member John stated he did call the water rights attorney to make sure the water was usable, which it was. He noted the water rights attorney has done a good job with this.

Mayor Frost called for a vote on the motion. Voting was as follows:

RESULT:	APPROVED [UNANIMOUS]
MOVER:	Clark Taylor, Council Member
SECONDER:	Ernie John, Council Member
YES:	Staci Carroll, Ryan Hunter, Ernie John, Clark Taylor
ABSENT:	Tim Holley

5. Review and action on an ordinance approving a Code Text Amendment, known as Rival Athletics, of the American Fork City Municipal Code. Amending Section 17.4.502, the Code Text Amendment plans to include athletic gyms as a permitted use with the Planned Industrial (PI-1) Zone.

Mr. O'Brien explained this application was submitted by the applicant, which staff does have serious concerns with the language proposed. This started as a business that was non-permitted use in the zone, and the proposed code text amendment was their way to bring their use into compliance. With their concerns for the amendment as presented, staff asked the council to deny approval. The question they should be looking at is the zoning and if the council felt it was an appropriate use for the zone.

Mayor Frost explained the city council has been able to review the packet in advance.

Council Member John agreed that this should be covered under a zoning change rather than a code text amendment, which Mr. O'Brien stated was something they had discussed previously. The challenge was if a zone change would impact the other businesses in that building that would cause them to be non-permitted uses. Mr. O'Brien stated they have looked at the other uses at that location and they would fit into both zones. He also explained it wasn't like they were trying to fit something in that wasn't allowed in other areas; this use was allowed in other zones. In this situation, the business had started prior to obtaining proper approvals.

Council Member Carroll stated she did not have a problem with the use in the PI zone, but she did not like the language as it was written. She felt the 'athletic gym' definition was too broad, to which Mr. O'Brien agreed and stated they should also approve a code text amendment on definitions.

Ms. Egner explained the staff recommendation was to deny the code text amendment. Typically, staff looks at the changes and will have made some changes; they did not do this now as it was a whole new use. If the council wants to allow this, staff asked that they deny this ordinance and instruct staff to come back with a new proposal. She felt this would be more of a conditional use so they could look at the parking and traffic for each project. Her recommendation was to send staff back to the drawing board to allow for conditional use. Mr. O'Brien stated the use may not be problematic here, but multiple similar uses in one area could create an impact.

Council Member Taylor moved to deny the proposed code text amendment amending Section 17.4.502, titled Rival Athletics, relating to athletic gyms being permitted in the PI-1 zone. Council Member John seconded the motion. Voting was as follows:

Council Member Carroll stated she was open to that use in the zone, and she was open to it.

Mayor Frost called for a vote on the motion. Voting was as follows:

RESULT:	DENIED [UNANIMOUS]
MOVER:	Clark Taylor, Council Member
SECONDER:	Ernie John, Council Member
YES:	Staci Carroll, Ryan Hunter, Ernie John, Clark Taylor
ABSENT:	Tim Holley

6. Review and action on the 2024 Utah County Municipal Recreation Grant Application.
Council Member Taylor moved to authorize the mayor sign the application for the 2024 municipal recreation grant. Council Member Hunter seconded the motion. Voting was as follows:

RESULT:	APPROVED [UNANIMOUS]
MOVER:	Clark Taylor, Council Member
SECONDER:	Ryan Hunter, Council Member
YES:	Staci Carroll, Ryan Hunter, Ernie John, Clark Taylor
ABSENT:	Tim Holley

7. Review and action on a resolution approving an interlocal cooperative agreement with Utah County for substance misuse prevention services and Communities that Care prevention model.

Mayor Frost announced he was in a meeting with the county, who explained they were extremely impressed with our program and increased the grant by \$10,000. Brooke Anderson is the coordinator who has really magnified this position.

Council Member Carroll moved to adopt Resolution No. 2024-08-31R authorizing the mayor to sign the interlocal agreement with Utah County for substance misuse prevention services and the Communities that Care prevention model. Council Member Taylor seconded the motion. Voting was as follows:

RESULT:	ADOPTED [UNANIMOUS]
MOVER:	Staci Carroll, Council Member
SECONDER:	Clark Taylor, Council Member
YES:	Staci Carroll, Ryan Hunter, Ernie John, Clark Taylor
ABSENT:	Tim Holley

8. Review and action on approval of a Land Lease Agreement with New Cingular Wireless PCS, LLC.

This would fill a void in the city with cell phone service.

Council Member Taylor moved to approve the Land Lease Agreement with New Cingular Wireless PCS, LLC. Council Member John seconded the motion. Voting was as follows:

RESULT:	APPROVED [UNANIMOUS]
MOVER:	Clark Taylor, Council Member
SECONDER:	Ernie John, Council Member
YES:	Staci Carroll, Ryan Hunter, Ernie John, Clark Taylor
ABSENT:	Tim Holley

9. Review and action on approval of a reimbursement agreement with Maverik.
Council Member Carroll moved to approve the reimbursement agreement with Maverik and authorize the city to sign the agreement. Council Member Taylor seconded the motion. Voting was as follows:

RESULT:	APPROVED [UNANIMOUS]
MOVER:	Staci Carroll, Council Member
SECONDER:	Clark Taylor, Council Member
YES:	Staci Carroll, Ryan Hunter, Ernie John, Clark Taylor
ABSENT:	Tim Holley

10. Consideration and action to enter into a closed session to discuss items described in Utah State Code 52-4-204 and 52-4-205.

Mayor Frost explained the purpose of the closed session was to discuss property acquisition, pending litigation, and the character, professional competence, or physical or mental health of an individual. They would meet in the downstairs work room, and at the conclusion of the closed session would re-open the regular session and adjourn from that location.

Council Member Hunter moved to enter into a closed session at 7:55 p.m. Council Member John seconded the motion. Voting was as follows:

RESULT:	ADOPTED [UNANIMOUS]
MOVER:	Ryan Hunter, Council Member
SECONDER:	Ernie John, Council Member
YES:	Staci Carroll, Ryan Hunter, Ernie John, Clark Taylor
ABSENT:	Tim Holley

The City Council entered into a closed session to discuss the professional character and competence of individuals at 8:07 p.m. Those present included Mayor Frost, Council Member Carroll, Council Member Hunter, Council Member John, and Council Member Taylor. Also present were City Administrator David Bunker, City Attorney Cherylyn Egner, and City Recorder Terilyn Lurker. Property acquisition and pending litigation were discussed, and audio recorded as required by law.

At 8:47 p.m., the character, professional competence, or physical or mental health of an individual was discussed. (See attachment)

Council Member Taylor moved to return to the regular session at 8:54 p.m. Council Member Hunter seconded the motion. Voting was as follows:

RESULT:	ADOPTED [UNANIMOUS]
MOVER:	Clark Taylor, Council Member
SECONDER:	Ryan Hunter, Council Member
YES:	Staci Carroll, Ryan Hunter, Ernie John, Clark Taylor
ABSENT:	Tim Holley

11. Adjournment.

Council Member Hunter moved to adjourn the meeting. Council Member John seconded the motion. All were in favor.

The meeting was adjourned at 8:55 p.m.



Terilyn Lurker, City Recorder